

HEADNOTE

“1. It is permissible to make a counterclaim for revocation conditional upon a finding of patent infringement.

2. The transition from an unconditional counterclaim for revocation to one that depends on the occurrence of a procedural prerequisite (i.e., a finding of patent infringement by the court) nevertheless means that the counterclaim remains unconditionally limited in accordance with R 263.3 RoP.

3. If no decision is made on the revocation counterclaim in accordance with the request of the counterclaimant, the counterclaimant must in principle bear the costs of the revocation counterclaim. Keywords: Procedural condition for decision on counterclaim for revocation; cost allocation UPC_CFI_492/2025 UPC_CFI_1309/2025”

COURT
Local Division in Munich

PROCEEDINGS
Infringement action

PATENT
EP 3 030 943

METHOD FOR OPERATING A
FLOOR-CLEANING DEVICE AND
FLOOR-CLEANING DEVICE

KEYWORDS

Procedural condition for the decision on th...

Cost allocation UPC_CFI_492/2025 UPC_...

Rule 263 Leave to change claim or amend case

SUMMARY

The Local Division in Munich ruled on an infringement action. The patent at issue relates to a method for operating a floor-cleaning device and floor-cleaning device. According to the headnotes of the decision, a defendant may submit a counterclaim seeking revocation of the patent only if the court first finds that the patent has been infringed. The court confirmed that even when a revocation counterclaim is made conditional upon a finding of infringement, it remains subject to the standard rules governing the scope of counterclaims under the Rules of Procedure. Where the court does not rule on a revocation counterclaim in the manner requested by the defendant, the defendant must generally pay the costs associated with that counterclaim.